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File No.: EXP202302929

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On April 19, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against IDFINANCE SPAIN, S.A.U. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on June 3, 2024, the proposed resolution was issued, which is transcribed below:

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File No.: EXP202302929

## PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

### BACKGROUND

FIRST: On January 23, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against IDFINANCE SPAIN, S.A.U. with NIF A66487190 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The complainant, through their representative FACUA, submits a complaint to this Agency regarding the respondent's refusal to delete their personal data from common credit information systems.

They indicate that, on December 1, 2022, they requested the deletion of their personal data from the respondent, providing a copy of the police report filed on May 18, 2020.

They received a response from the respondent informing them that deletion was not appropriate due to an outstanding debt.

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Along with their complaint, they provide a copy of the deletion request submitted by the complainant (in their own name) along with the police report sent to the respondent and a response dated December 22, 2022, in which they are informed that deletion is not appropriate due to an unpaid loan and in which they require the police report that the complainant has already provided in their deletion request.

The complainant also submits:

- Authorization to FACUA for their representation.
- Certificate of membership of FACUA from the complainant.
- Copies of the ID cards of the complainant and the secretary of FACUA Córdoba.
- Police report dated May 18, 2020, at the Córdoba-Este Police Station of the National Police in which the complainant states: having received in their mailbox, two days prior, a letter from the respondent claiming a debt for a loan; not recognizing the debt; and not having entered into any contract with the mentioned company.
- Letter from FACUA, acting on behalf of the complainant, dated September 20, 2022, addressed to the respondent, \*\*\*EMAIL.1, \*\*\*EMAIL.2, and \*\*\*EMAIL.3, with the subject “\*\*\*SUBJECT.1” in which they request the respondent to send the information related to the formalization of the contract and its acceptance, and that in case they do not have the same, they proceed to archive the debt claim and to cancel the complainant's data.
- Email from FACUA, acting on behalf of the complainant, sent on September 21, 2022, to \*\*\*EMAIL.1, \*\*\*EMAIL.2, and \*\*\*EMAIL.3, indicating that they are attaching the complaint of their represented party. Attached to the email is a file of 1.5 MB named “\*\*\*FILE.1”.
- Letter from the complainant, dated December 1, 2022, addressed to the respondent and to the email

addresses \*\*\*EMAIL.1, \*\*\*EMAIL.2, and \*\*\*EMAIL.3, in which they state that they have no relationship with the respondent and that they have been harassed by them for two years, that they filed a complaint with the police on May 20, 2020, that they have requested documentation of the alleged contract through FACUA but have not received a response, and for which they request the deletion of their personal data, the filing of any collection management file, and the communication of the deletion of their data to other data controllers.

- Email from the complainant on December 1, 2022, at 12:18, in which they forward to FACUA an email sent at 11:17 to \*\*\*EMAIL.1 requesting that their right to deletion be attended to.

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- Email from the claimant to FACUA on December 1, 2022, at 12:43, in which they forward the emails sent at 11:42 to \*\*\*EMAIL.3 and at 11:17 to \*\*\*EMAIL.1 with an attachment of 3.0 MB “\*\*\*ARCHIVO.2”
- Email from the claimant on December 23, 2022, in which they forward to FACUA a response email from \*\*\*EMAIL.1, dated December 22, in which the respondent replies to the email sent by the claimant on December 1 at 11:17 (identical to the one forwarded in Part 5 above). In the response, the DPD of the respondent informs the claimant that they cannot comply with their right to erasure due to an outstanding debt, and indicates that if they suspect they have been a victim of identity theft, they must send a copy of the police report.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on March 13, 2023, the case was forwarded to IDFINANCE SPAIN for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on March 23, 2023, as noted in the acknowledgment of receipt in the file.

On April 23, 2023, this Agency received a response letter indicating that the personal data was obtained directly from the claimant at the time the loan was formalized through the entity's website, using a reinforced identity verification system through the provider "DEYDE Calidad de Datos, S.L." (hereinafter, "DEYDE"), whereby the system, upon receiving a request, automatically sends DEYDE the name, surname, and ID number.

In this way, DEYDE checks in the database of the State Agency for Tax Administration (AEAT) that these data indeed match the information they have in the mentioned database.

In this case, DEYDE's verification confirmed the match between the information provided to IDFINANCE and that which is recorded by AEAT, so IDFINANCE accepted this verification as valid on 09/03/2020 (12:09:46).

Along with their response, they also provided the following documents:

- ASNEF MANAGEMENT PROCEDURE
- CONTRACT, CERTIFICATE, AND AMORTIZATION TABLE
- LOAN APPLICATION PROCEDURE

THIRD: On April 23, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claimant was admitted for processing.

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FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control

authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, information was requested from:

- THE GENERAL DIRECTORATE OF POLICE
- DEYDE CALIDAD DE DATOS S.L
- BANCO BILBAO VIZCAYA ARGENTARIA, S.A.
- XFERA MÓVILES S.A.
- ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L.,
- IDFINANCE SPAIN, S.A.U.

These investigative actions allow for the confirmation of the following points:

The present claim provides, as data of the respondent, "MONEYMAN (ID FINANCE SPAIN)".

The respondent is responsible for the website \*\*\*URL.1.

#### ACTIONS BEFORE THE GENERAL DIRECTORATE OF POLICE

On May 31, 2023, collaboration was requested from the GENERAL DIRECTORATE OF POLICE, which on June 13 stated, through its Data Protection Delegate, the legal impossibility of sending the requested information.

When requesting the respondent for the data subject to processing that is recorded in their systems and the origin of these, the respondent states that:

"The categories of personal data that are recorded in our systems are as follows:

- Identifying data: name, surname, National Identity Document, ID Borrower (ID assigned to the applicant by the system), IPs.
- Contact data: Address, phone, email
- Personal circumstances: marital status, date of birth, family situation, gender.
- Employment data: employment regime, employer, and department.
- Economic and financial data: Income, bank IBAN.
- Data related to credit applications: amounts, interest rates to be applied in case the credit is approved, repayment terms, and, where applicable, amount of the debt."

In the above list, it is not mentioned that any image of the claimant's ID is stored in their systems.

When requesting a list of the personal data that their system stores when a new customer registers and a copy of the data and images saved by the application when the claimant registered, the respondent states:

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"We attach as ANNEX IX via certificate the list of data that our system stores when a new client is registered, as well as a copy of the same."

The responding party provides a document, in which it states:

"The data provided by our client on the past day \*\*\*DATE.2 when Mr./Ms. A.A.A. requested a loan through our website, which the same confirmed as true, are as follows;

Name: A.A.A.

First surname: A.A.A.

Second surname: A.A.A.

DNI/NIE: \*\*\*NIF.1

Date of birth: \*\*\*DATE.1

Address: \*\*\*ADDRESS.1

Phones on which the holder has been contacted: +\*\*\*PHONE.1, +\*\*\*PHONE.2

Phones provided by the holder without contact with them: +\*\*\*PHONE.2

Email address: \*\*\*EMAIL.4"

The following relevant data is extracted from the application of this same client to proceed with their

claim;

Access IP address: \*\*\*IP.1

Loan application date: \*\*\*DATE.2

Amount requested: 000.0 €

Agreed repayment date: \*\*\*DATE.3

Amount due as of the date of drafting this document: 000.0 €

Amount sum of interest owed as of the date of drafting this document: 000.0 €"

The responding party does not indicate that it retains any certification of bank ownership.

However, when requesting the responding party to provide proof of the means used to identify the affected person at the time of contracting, the responding party states:

"On the date of the loan application, IDFINANCE applied a reinforced identity verification system through the provider 'DEYDE Calidad de Datos, S.L.' (hereinafter, 'DEYDE') whereby the system, upon receiving a request, automatically sends DEYDE the name, surnames, and DNI number. In this way, DEYDE checks in the database of the Spanish Tax Agency that these data indeed match the information they have in the mentioned database. In this case, DEYDE's verification confirmed the match between the information provided to IDFINANCE and that which is recorded with the Spanish Tax Agency, therefore IDFINANCE deemed this verification valid. We attach as ANNEX IV the verification of the identity of the Claimant."

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The responding party provides an image showing the registration date of the claimant in Moneyman (March 9, 2020) and mentions "Deyde-Passport," but no data appears that allows associating the information with the claimant, although the figure that appears in the last line "\*\*\*DATE.2 12:25:14: Money sent; payment order XXXXXXXX; Unnax XXXXXXXX" also appears in the contract, page 9, and in the complaint.

The statements of DEYDE CALIDAD DE DATOS S.L. regarding the service contract signed with the responding party and its addendum, and the copy of the same contract subsequently provided by the responding party with its addendum, describe the service provided as a verification of the correspondence between a name and a NIF in contrast to the census of the AEAT.

ACTIONS BEFORE DEYDE CALIDAD DE DATOS S.L.

DEYDE CALIDAD DE DATOS S.L. states:

"In no case does DEYDE offer or market MyDataQ\_ID Validation as an identity verification system, nor can the functions it performs be considered encompassed in this concept since they only receive a name and an identity document, without having access to other data that would allow for any identity validation. That is to say, the purpose of this service is to verify that the user is registered with the Tax Agency.

Furthermore, the product does not access any database of the Tax Agency, it only provides a service included in its electronic headquarters.

This is expressly stated in the contract signed between DEYDE and ID FINANCE.

[...]

We understand that the data of A.A.A. with NIF \*\*\*NIF.1 must have been sent more than 18 months ago, as we currently have no record of it either in our production systems, which have data from the last 20 days, nor in the backup system that contains information from 18 months prior.

We have been able to verify that, as of June 1, 2023, the service indicates that this data is registered with the Tax Agency."

That is to say, it states that, when contrasted with the census of the AEAT, there is a match between the name and the NIF provided.

Following the link below, more information about this service can be consulted: \*\*\*URL.2.

The responding party states that "The data was obtained directly from the interested party at the time

the loan was formalized" and that it provides "the contract signed by the Claimant as ANNEX II" and the "current loan application procedure as ANNEX III."

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The responding party states that the procedure followed for verifying the identity of the claimant consisted of checking the match between the name and the DNI/NIF number through the aforementioned service of the Tax Agency and, as deduced and explained further on, it should have included a phone call and the sending of images of the DNI via a webpage whose URL was provided through SMS messages.

The procedure provided does not correspond with the previous statements, as it includes verification by providing images of the DNI and a "selfie" photograph through an app of the claimant, while the SMS messages that the responding party claims to have sent during the registration process, which are analyzed later, do not mention the sending of any "selfie."

The responding party has not stated that it dealt with images of the claimant.

The document includes a contract along with a debt certificate issued by the responding party itself and an amortization schedule. However, this document does not contain the electronic signature of the claimant, nor does it appear to have their handwritten signature on any of its pages.

On page 1, the identity and contact details of the claimant are detailed, and it mentions:

"The bank account provided by the holder for the deposit of the loan amount and of which they claim to be the holder and responsible is \*\*\*ACCOUNT.1."

The responding party is requested to provide information that its company had regarding the relationship between the claimant and the account into which the loan money was deposited, and whether it conducted any verification procedure regarding the ownership of the account before the deposit or has done so subsequently, and its result.

In its response, the responding party states:

"The information that Moneyman had regarding the relationship between the claimant and the account into which the money is deposited is based on the document issued by the BBVA (Banco Bilbao Vizcaya Argentaria, S.A.), provided by the claimant during the loan subscription process. It indicates that the ownership of the account into which the deposit is made belongs to the claimant. We attach the document as ANNEX 1. Since the certificate provided was issued by BBVA (with an electronic signature at the bottom of the certificate) and the data obtained directly by the claimant, these were considered accurate."

A document is provided that appears to be a certification from the banking entity attributing the ownership of account \*\*\*ACCOUNT.1 to the claimant.

The document includes a logo and seal of the banking entity, but not the signature of the entity.

The footer of the certificate specifies the following:

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"This document has been generated in digital format and has been electronically signed, which according to Law 59/2003 on Electronic Signature allows:

To identify the signer unequivocally, having the electronic signature regarding the data recorded the same value as the handwritten signature when recorded on paper.

To ensure the integrity of the signed document.

If you are consulting a printed copy of the certificate, you can verify its authenticity by contrasting it with the digital version of the same, in which you can check the signature in the signature panel.

(...).

Serial number: XXXXXXXXXXXXXXX

Certification Date (GMT time): XXXXXXXXXXXX"

However, it has been verified that the document provided is not electronically signed; the information appearing in the footer also does not allow for verification of its authenticity.

ACTIONS BEFORE BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

BANCO BILBAO VIZCAYA ARGENTARIA, S.A. states that the ownership of account \*\*\*ACCOUNT.1 corresponds to a person different from the claimant.

The responding party states:

"We attach as ANNEX IV the verification of the identity of the Claimant," and provides image [6]. In that image, there is no data that allows associating the information with the claimant. This image can only be associated with the rest of the documentation by the number that appears at the bottom, 00000000, which also appears in the contract and in the complaint.

When requested to provide the list of personal data that its system stores when a new client registers and a copy of the data and images stored by the application when the claimant registered, the responding party states:

"We attach as ANNEX IX through a certificate the list of data that our system stores when a new client registers, as well as a copy of the same."

In this document, among other personal data of the responding party, the number +\*\*\*PHONE.2 (hereinafter, Number\_1) is listed.

ACTIONS BEFORE XFERA MÓVILES S.A.

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XFERA MÓVILES S.A. states that between March 3 and August 1, 2020, the Number\_1 corresponds to a person different from the claimant. The person holding the line also does not match the holder of the bank account.

When requesting to provide, if applicable, the SMS sent to the claimant for the registration and for the loan application, the responding party states:

"Attached as ANNEX X is the proof of the SMS sent to the claimant for the registration and the loan application."

This document contains a table with 14 records of SMS sent on March 9, 2020, between 12:06 and 12:25 to Number\_1.

As previously mentioned, the claimant was not the holder of Number\_1, and it has not been proven that the claimant could read the messages sent to Number\_1.

The tables in the document are Excel tables with information, among other things, related to the date and time, destination number, and content of various SMS. This information has been provided by the responding party but has not been verified by a third party.

The SMS in the table, dated March 9, 2020, between 09:12 and 12:25, follow the following sequence:

- "Your confirmation code from Moneyman.es 8872 of confirmation"
- "We have sent you the standardized information on consumer credit and the terms and conditions of your loan. Please read them carefully. Moneyman."
- "Last step to receive your money! Call now at XXXXXXXX to finish."
- "MONEYMAN: pending to send ID/NIE on both sides. Click on [https://\\*\\*\\*URL.1/](https://***URL.1/) to upload them.

Thank you."

(This SMS appears nine times consecutively).

- "Your money is on the way! We have issued the payment order for the requested amount in a loan of 200.00 euros."

- "We have sent you the standardized information on consumer credit and the terms and conditions of your loan. Please read them carefully. Moneyman."

From the sequence, it can be deduced that during the registration process, a phone call must have taken place, followed by the sending of images of the ID on both sides, through the link \*\*\*URL.1.

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When asked about the receipt of any image of the claimant's identity document, the responding party states that it received a photograph of the identity document during the registration process and provides the image.

It is concluded from the above that the verification of the identity carried out during the user registration process with the claimant's data consisted of checking the match of their name, surname, and identity document with those in the census of the Tax Agency, sending SMS messages to Number\_1, a phone call, the acceptance of a certificate lacking the electronic signature that the text itself states it contains in its electronic version of bank account ownership, and the receipt of an image of the claimant's ID. Regarding the notifications sent by the responding party, and the claimant's consent for the processing of their personal data and for the registration of the same in credit information systems, the following has been noted:

The claimant states that they never requested a loan through the responding party and declares that "they do not recognize such debt as they have not made any contract with such a company."

When requesting the responding party for documentation proving the origin of the debt that led to the inclusion of the affected person's personal data in credit information systems, the responding party states that it provides a contract along with a debt certificate issued by the responding party itself and an amortization table. Neither the received document contains the electronic signature of the claimant, nor does their handwritten signature appear on any of its pages.

When again requesting the responding party for proof of the claimant's acceptance of the debt, the contract, and its clauses, the responding party states:

"Attached as ANNEX II is the certificate that proves the acceptance of the privacy policy and the acceptance of the Terms and Conditions of the loan contract on March 9, 2020.

We also attach as ANNEX III the communications sent on March 9, 2020, in which the formalization of the loan by the claimant is evident."

As ANNEX II, it provides a certificate issued by the responding party itself of acceptance of conditions from a certain IP address on March 9, 2020, at 12:09.

As ANNEX III, it provides the table containing 14 records of SMS sent on March 9, 2020, between 12:06 and 12:25 to Number\_1. As previously mentioned, the claimant was not the holder of Number\_1, and it has not been proven that the claimant could read the messages sent to Number\_1.

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The claiming party also states that on May 16, 2020, "it receives in its mailbox a notification from the claimed company [...] in which it is requested to pay the outstanding amount of 312.80 euros. The loan contract number 0000000 is referenced."

When requesting a copy of the aforementioned notification from the claimed party, it states that it has no record of such a sending and provides, as proof of the receipt of payment demand notifications to the claimed party, a table regarding two SMS messages sent on May 14 and 17, 2020, to Number\_1. The table is similar to the previously mentioned tables, and as already stated, the claiming party was not the holder of Number\_1.

Furthermore, the document provided by the claimed party includes the general terms and conditions; Article "18.- Notifications" of the same states:

"Notifications between the parties that must be made as a consequence of what is provided in these General Conditions or the Loan Contract will be made in writing and will be valid if carried out by certified mail with acknowledgment of receipt, or email to the addresses mentioned below for each of

the Parties:

Borrower: the one indicated in the Loan application [...]"

Therefore, although it has been established that the claiming party received a notification at its address, the claimed party states that this was made via SMS to Number\_1, and it has not proven that it was done in accordance with the general conditions, which, according to its statements, were accepted by both parties.

The claimed party also states:

"We attach as ANNEX XI the certificate issued by the company in which it is certified that the claimant accepted the processing of their personal data by IDFINANCE SPAIN, S.A.U."

As ANNEX XI, it provides a certification from the claimed party itself.

The claiming party states that it has been improperly included in the ASNEF EQUIFAX solvency file.

When asking the claimed party about the information in the contract regarding the possibility of inclusion in credit information systems, it states:

"The possibility of inclusion in the case of default in credit information systems is informed in clause 16.1 a) of the General Conditions of the attached contract in ANNEX II and in point 3 of the European Standardized Information Form on consumer credit (pre-contractual information) which is found at the end of the attached contract."

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As ANNEX II, it provides the contract where in Article "16.- Protection of personal data" (page 6) it states:

"16.1. With the consent of the Loan Applicant, regardless of the Loan Decision, the Borrower is informed, consents, and expressly authorizes the Lender:

(a) To collect information regarding their credit history and risk positions from entities providing information services on solvency and credit [...].

The Borrower is informed that, in the event of default within the stipulated term, and having fulfilled the necessary legal requirements and relevant communications, their Personal Data may be communicated to the Credit Service of Asnef-Equifax, located at C/ Albasanz, 16, 28037, Madrid."

On the other hand, on page 4, it indicates that Article 13.3 states:

"If within thirty (30) days from the due date of the acquired debt, it has not been satisfied by the Borrower, having been previously notified, the Lender shall have the right to communicate the Borrower's data to files of information on solvency and credit, meeting in any case the requirements necessary for the inclusion of data."

When requesting information about the procedure for including its clients in credit information systems, the claimed party states:

"4. Collections

Once the loan expires without payment being made, the system changes the status of the loan (Loan ID) to expired ("Expired") and the automatic notification and "Collection" procedure is initiated.

The system sends automated SMS and Emails notifying that the payment of the expired debt has not been received and indicating payment facilities.

Notifications of inclusion in credit information systems due to default on debt are not sent until day 30 (DPD30) or 45 (DPD45) from the due date.

Attached as ANNEX IV is the automatic Collections procedure and the messages that are sent."

The claimed party in ANNEX IV provides a document that contains a description of the variables, requirements, and notifications to be sent, related to the notification system, "Collections," used for sending notifications of default to its clients, via email and SMS, automatically.

The claimed party also states:

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"In accordance with the request, we attach as ANNEX V the notification made via SMS to the claimant regarding the expiration of their debt and its imminent inclusion in credit information systems" and provide as ANNEX V the table with information about two SMS messages sent to Number\_1 on May 14 and May 17, 2020.

As previously mentioned, the responding party has not proven that the claimant was able to read the SMS messages sent to Number\_1. Furthermore, sending SMS messages is not considered a means of communication.

The responding party states:

"On January 23, 2023, we received an email from FACUA Córdoba, as indicated in the response dated March 23, 2023, to the first request received from the AEPD, in which we were informed of the complaint filed with the police for identity theft by the claimant.

It is at that moment that this entity becomes aware of the complaint filed and proceeds to apply the measures established for cases of fraud (1st - blocking the claimant's data in our systems, 2nd - halting the debt claim (keeping the data blocked and limited in processing since they may be required by the competent authorities for the investigation of the facts), and 3rd - removing the claimant's data from the asset solvency files).

Thus, it is indicated to FACUA in the email responding to their information request, which is attached as ANNEX 4.

From that moment on, the data has been maintained in this manner until the clarification of the facts by the police."

As ANNEX 4, it provides the document signed on February 6, 2023, in which it responds to the claimant:

"That, taking into account the content of the Claim and the documentation provided, ID FINANCE SPAIN has proceeded:

1) to block the claimant's data in our system as well as  
2) to halt the debt claim. The data is blocked and limited in processing since they may be required by the competent authorities for the investigation of the facts.

3) The data of Ms. A.A.A. has been removed from the asset solvency file (ASNEF EQUIFAX)."

ACTIONS BEFORE ASNEF-EQUIFAX INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L.

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On the other hand, ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L., provides the registrations of the claimant in its records following the request from the responding party, with dates of registration and deregistration:

- May 29, 2020 (registration) and June 8, 2020 (deregistration).
- July 10, 2020 (registration) and January 30, 2023 (deregistration).
- April 15, 2023 (registration) and April 16, 2023 (deregistration).

It also provides the notifications of registration sent to the claimant by ordinary postal mail to the claimant's address, with dates May 29, 2020, July 10, 2020, and April 15, 2023.

It is established that the responding party kept the claimant registered in credit information systems during the three periods mentioned above, the last of which is subsequent to February 6, 2023, the date of its response to the claimant, in which it communicates the blocking of their data.

ACTIONS BEFORE IDFINANCE

Regarding the actions taken by IDFINANCE in response to the claimant's requests related to their rights concerning the processing of their personal data:

The claimant requested the responding party to address their right to the deletion of their personal data and the removal of such data from the asset solvency files on September 21, 2022, through their legal representative FACUA, sending the letter to three email addresses of the responding party (\*\*EMAIL.1, \*\*\*EMAIL.2, and \*\*\*EMAIL.3).

This request did not receive a response nor was it attended to.

The responding party has not communicated to the Spanish Data Protection Agency, as of the date of this report, the identification data of its Data Protection Officer.

When requesting the responding party to "provide a report or summary of the actions carried out by the Data Protection Officer of your company regarding the request by the claimant for the deletion of their personal data," the responding party makes different statements:

"In relation to the actions carried out by the Data Protection Officer regarding the deletion of the claimant's personal data, it was proceeded with according to the internal procedure for managing the rights of the interested parties."

In response to the request for information regarding the reason for not responding to the email from the legal representative of the claimant, the responding party states:

"[...] due to personnel changes in the Legal department of Moneyman, the email sent by FACUA on September 21, 2022, the inbox to which that email arrived."

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remained unaddressed, without the personnel who replaced the person responsible for that mailbox being aware of the unanswered message."

It is established that the respondent did not adequately address the request for data deletion from the claimant, as it did not respond to the email sent by FACUA as its legal representative on September 21, 2022.

The claimant again requested the respondent to attend to their right to the deletion of their personal data and the elimination of the same from the solvency files on December 1, 2022, sending the letter to two email addresses of the respondent (\*\*EMAIL.1 and \*\*\*EMAIL.3).

The respondent also states that "the internal procedure for managing the rights of the interested parties was followed," and provides a document that, among other things, establishes a one-month period for deletion or communication against the affected party, the need to immediately communicate requests to the DPO, who must verify whether certain requirements are met (name and surname, whether a photocopy of the ID or similar is provided, whether the request is expressed, address, date), and that the DPO must request the rectification of the same if applicable.

When requesting more information about the attention to the rights of the claimant, the respondent states:

"On December 22, 2022, a response was provided to the exercise of rights submitted by the claimant on December 1, 2022, as can be seen in the attached document as ANNEX 3."

As ANNEX 3, it provides the email sent on December 22 from \*\*\*EMAIL.1 to \*\*\*EMAIL.4, in response to the claimant, in which it indicates that:

"it cannot proceed with the deletion of your personal data in our database due to having an unpaid loan" and that "if you suspect that you may have been a victim of identity theft, we recommend that you report the facts to the police and send us the report so that we can take appropriate measures."

It also states the following:

"On January 23, 2023, an email was received from FACUA Córdoba, as indicated in the response dated March 23, 2023, to the first request received from the AEPD, in which we were forwarded the police report for identity theft filed by the claimant.

It is at that moment when this entity becomes aware of the report filed and proceeds to apply the measures established for cases of fraud (1st - blocking the claimant's data in our systems, 2nd - halting the debt claim (keeping the data blocked and limited in processing since they may be required by the competent authorities for the investigation of the facts), and 3rd - removing the claimant's data

from the solvency files).

Thus, it is indicated to FACUA in the email response to its information request, which is attached as ANNEX 4."

As ANNEX 4, it provides an email signed on February 6, 2023, in which, as already explained in the previous section, it communicates to the claimant that it attends to their rights.

However, as already established, the respondent re-registered the claimant in ASNEF-EQUIFAX between April 15 and 16, 2023.

FOURTH: According to the report collected from the AXESOR tool, the entity ID FINANCE SPAIN, S.A.U. is a large company established in 2015, whose corporate purpose is the granting of non-mortgage loans or credits to any person, with a workforce of 146 employees, and a turnover of €178,771,000 in 2022.

FIFTH: On April 19, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 17 of the GDPR, Article 6 of the GDPR, and Article 37 of the GDPR, classified in Article 83.4.a) of the GDPR, Article 83.5.b) of the GDPR, and Article 83.5.a) of the GDPR.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted two allegations, the first concerning the aggravating factor of the possible infringement of the right to deletion of data and a second regarding the classification and qualification of the alleged infringement of Article 6 of the GDPR.

Regarding its first allegation, it has stated the following:

"Regarding the aggravating factor of negligence in the processing of data, the AEPD considers that it is applicable since, '(...) although the response provided on February 6, 2023, indicates that the request of the claimant was attended to, the subsequent re-inclusion in the solvency file seems to prove that this was not the case.'

However, this party considers that it is not applicable since, at no time did ID Finance communicate to the Claimant the deletion of their data, but rather the blocking of the same in the ID Finance system; halting the debt claim; and deleting the data from the solvency file, but in no case is the definitive deletion of the data communicated (p. 346 of the complete file provided by the AEPD).

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This is the case because, in this instance, the definitive deletion of the data cannot be carried out while the police investigation remains open, during which they may request information from ID Finance, and the existence of an identity theft crime has not yet been established.

Therefore, ID Finance considers that the application of this aggravating factor is not warranted.

Additionally, the AEPD also justifies the aggravating factor by stating that the data was communicated again to ASNEF-EQUIFAX at a later time, indicating that the request was not properly addressed. However, this is not true, as the day after the communication of the data to ASNEF-EQUIFAX, the data was deregistered, meaning that no rights of the Claimant have been violated. Moreover, that data was never published since, according to Article 20.1.c of the LOPGDD, 30 days must pass before publishing it.

Furthermore, in the complaint made by the Claimant, she does not mention this circumstance at any time, so this party considers that, although there was a computer error as alleged in previous submissions to the AEPD, it is not the subject of the present complaint.

Thus, while it is true that ID Finance erred in not realizing that the Claimant had provided a copy of the complaint in her request of December 1, 2022, the ID Finance employee who handled the request

responded within the deadline, arguing the reasons for the denial of the right, providing a direct link to the AEPD's website, informing of the right to file any complaint deemed appropriate, and proposing that if she believed there was identity theft, she should provide a complaint to deregister her data (pages 351 and 352 of the complete AEPD file). When on January 23, 2023, they received a copy of the complaint, ID Finance proceeded to deregister her from ASNEF-EQUIFAX on January 30, 2023, and communicated this to the Claimant on February 6, 2023, which was the goal pursued by the Claimant, all within the one-month deadline established by the GDPR.

All of this demonstrates the transparency and good faith of ID Finance, actions that are entirely contrary to obstructing individuals' data protection rights.

On the other hand, since this complaint affects only one person, this party considers that the aggravating factor of Article 76.2 b) LOPDGGD regarding the link between the infringer's activity and the processing of personal data cannot be taken into account, as has been alleged in previous submissions, since the processing of data subject to alleged identity theft is not the main data processing activity of ID Finance.

In its second submission, the responding party states the following:

"In relation to the classification and qualification of the alleged infringement of Article 6 of the GDPR, according to the information that this party has been able to access after a complete review of the file, the AEPD requested information from the General Directorate of the Police (hereinafter, the 'Police') regarding the 'Procedures and/or investigations carried out to clarify the facts reported by A.A.A., with DNI \*\*\*NIF.1. According to our records, she filed a complaint at the CÓRDOBA ESTE office on 18/05/2020 before instructor 115476 (report number 6224/20)' (page 106 of the complete file provided by the AEPD), in order to assess the legality of the processing of the Claimant's data according to Article 6 of the GDPR.

Thus, it is established that the Police do not provide any information regarding the investigation being carried out on their part. Nevertheless, the AEPD, in the current sanctioning procedure, assumes that the Claimant has indeed been a victim of identity theft based on the submitted complaint, which cannot be presumed as such an assessment corresponds to the police and, in any case, to a judge.

It should be noted that the filing of a police complaint does not imply the veracity of the information, nor even the demonstration of the alleged crime. However, ID Finance's internal policy, as a precautionary measure, establishes that when a police complaint regarding alleged identity theft is received, the personal data of ASNEF-EQUIFAX should be deregistered.

On the other hand, regarding the verification of the holder of the provided phone number and bank account, the AEPD cannot deny that if ID Finance had requested this information from the corresponding companies, in this case, XFERA MÓVILES, S.A.U. and BANCO BILBAO VIZCAYA ARGENTARIA, S.A. ("BBVA"), they would under no circumstances have provided the information, prudently relying on data protection regulations and indicating that such information should be requested from the Court, specifying the legal framework and the necessity for its assessment, which is excessive and disproportionate for ID Finance.

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Therefore, we consider that before resolving the present procedure and confirming the infringement of Article 6 of the GDPR by ID Finance, and given that the AEPD has at its disposal the identifying data of the holders of the telephone line and the bank account of BBVA, the aforementioned Authority should contact these individuals to request information regarding this matter in order to confirm the existence of the possible unlawfulness of the processing. Thus, with the information available to date from the AEPD without having contacted the individuals detailed in the file after the communication made to the entities BBVA and XFERA MÓVILES, S.A.U., this party considers that the identity theft of the complainant has not been substantiated, and therefore the unlawfulness of the processing by ID FINANCE and its corresponding proposed sanction is not established.

In accordance with the above, the following details of the informed individuals are provided, as

recorded in the file, so that the AEPD can complete the necessary investigations to clarify whether there is an unlawful data processing, that is, to confirm the link between the holder of the telephone line, the holder of the bank account, and the Complainant:

- Data of the holder of the telephone line provided to the AEPD by XFERA MÓVILES, S.A.U. on August 10, 2023 (pages 326 and 327 of the complete AEPD file):

o NAME: B.B.B.

o TYPE OF ID: DNI or ID NUMBER: 00000000

- Data of the holder of the bank account ES00 0000 0000 0000 0000 0000 of BBVA provided to the AEPD by BBVA on September 7, 2023 (page 358 of the complete AEPD file).

o Holder: C.C.C.

o Identification Document: 00000000

o Current postal address in systems: Street \*\*\*ADDRESS.2.

o Address recorded in the DNI submitted to BBVA for the purposes: \*\*\*ADDRESS.3.

Therefore, the AEPD in this case is proposing a sanction based on Article 6 of the GDPR for facts that have not yet been proven, that is, it understands the unlawfulness of the processing without having previously investigated whether the data of the Complainant is indeed being processed unlawfully.

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For this reason, this party considers, in strict terms of defense, that the AEPD exceeds its competence by qualifying the identity verification measures as insufficient, when it is demonstrated by the activity of ID Finance and its relationship with its clients that exceptional cases exist in which the measures applied by the entity do not yield the expected results.

Nevertheless, the AEPD itself in its Guide on "Risk Management and Impact Assessment in Personal Data Processing" acknowledges that zero risk does not exist, and ID Finance is continuously adopting improvements in its procedures to prevent cases of identity theft.

IX. B.- ASSUMABLE RISKS (Guide on "Risk Management and Impact Assessment in Personal Data Processing" - Page 127)

"As previously noted, the level of 'zero risk' does not exist. A compromise must be found between the level of residual risk achieved and the viability of the processing, which means making a decision about when a level of risk is acceptable."

Thus, this party considers that the aggravating factors imposed are excessive and do not correspond to this specific case since it has not been substantiated by the competent authorities that we are indeed facing a case of identity theft.

Despite the lack of evidence for the existence of the crime of identity theft by the Respondent or the AEPD, this party reiterates that ID Finance's policy is to immediately deactivate the data upon the mere presentation of the complaint, as ID Finance prefers to increase its losses, that is, not to recover the lent capital or the accrued interest, rather than harm someone who has truly been a victim of a crime, bearing all the damages that this entails for the activity of the entity itself.

Additionally, the AEPD argues as a basis for the aggravating factor of Article 83.2.b of the GDPR that "Although the respondent proceeded to block the personal data of the complainant on February 6, 2023, after receiving a copy of the complaint to the National Police, where it was reported that the complainant had been a victim of identity theft, between April 15 and 16, 2023, they again requested their registration in ASNEF-EQUIFAX."

This party considers that the AEPD, in this case, has overstepped the scope of its sanctioning

competence in proposing the imposition of the aggravating factor related to the blocking of the data, as it is not connected with the complaint made by the Complainant, which is based on the right to erasure of the data for their deregistration from ASNEF-EQUIFAX, and which at no time has been brought to the attention of the AEPD regarding this incident caused by a computer error, as previously explained in the allegations made by ID Finance, and to which no third party has had access according to Article 20.1.c of the LOPDGDD.

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This means that no real harm has been caused to the Claimant since no one has been aware of this last registration, which justifies, in any case, the magnitude of the proposed sanction.

Nevertheless, it should be mentioned that ID Finance, following this error, has proceeded to implement the appropriate technical measures to fix this bug, a computer failure, which affected the interested party. However, it is very important to take into account, when assessing the possible sanction, that no harm has been caused since no third party has had access to this information.

Currently, the data is not registered in ASNEF and the Claimant's profile is blocked in ID Finance's systems, in accordance with ID Finance's access policy (see Annex 1), so that only employees with a certain level of responsibility and from specific departments can view them, in order to address any potential police actions that may arise.

On the other hand, since this claim affects only one person, this party considers that the aggravating factor of Article 76.2 b) LOPDGDD regarding the link between the infringer's activity and the processing of personal data cannot be taken into consideration, as has been argued in the previous allegations presented, since the data processing subject to alleged identity theft is not the main data processing activity of ID Finance.

Additionally, as the same aggravating factor related to the link between the activity of the alleged infringer is being applied, both in the alleged infringement of Articles 37.7, 17, and 6 of the GDPR, ID Finance considers that it is being judged repeatedly for the same issue, violating the principle of "non bis in idem" according to established jurisprudential criteria.

For all these reasons, the violation of Article 6 of the GDPR by ID Finance has not been substantiated, and we request, even taking into account the unintentional human error committed by ID Finance, the filing of these proceedings, with the commitment to improve all necessary processes to prevent such particular situations from occurring.

From the actions taken in this procedure and the documentation in the file, the following have been established:

#### PROVEN FACTS

FIRST: On December 1, 2022, the claimant requested the deletion of their personal data from the respondent, providing a copy of the police report filed on May 18, 2020.

In response to this request, the respondent informed that deletion was not possible due to an outstanding debt.

SECOND: The respondent replied to the exercise of rights presented by the claimant on December 1, 2022, via email sent on December 22 from \*\*\*EMAIL.1 to \*\*\*EMAIL.4, in response to the claimant, indicating that: "it cannot proceed with the deletion of your personal data in our database due to an unpaid loan" and that "if you suspect that you may have been a victim of identity theft, we recommend that you report the facts to the police and send us the report so that we can take the appropriate measures." Furthermore, the respondent states that in response to the AEPD's request of March 23, 2023, on January 23, 2023, when FACUA forwarded the police report regarding identity theft filed by

the claimant, it proceeded to apply the established measures for cases of fraud (1st - blocking the claimant's data in our systems, 2nd - halting the debt collection, keeping the data blocked and limited in processing as they may be required by the competent authorities for the investigation of the facts, and 3rd - removing the claimant's data from the solvency files).

THIRD: The respondent re-registered the claimant in ASNEF-EQUIFAX between April 15 and 16, 2023.

## LEGAL GROUNDS

### I

#### Competence

According to the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons concerning the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

### II

#### Preliminary Issues

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In this case, on March 9, 2020, a user account was opened through the website of the entity being claimed, \*\*\*URL.1, using the personal data of the claiming party.

To open this account, and according to information provided by the claimed party regarding the procedure followed for this purpose, the personal data of the claimant (name, ID number, address, an image of their ID) were provided, along with a bank certificate, a mobile phone number +\*\*\*TELÉFONO.2, and a certificate of bank account ownership.

Investigative actions have confirmed that the claiming party was not the owner of the mobile phone number +\*\*\*TELÉFONO.2 (hereinafter, Numeración\_1) nor of the bank account used in the procedure for opening the indicated user account.

Using the created user account, a loan was requested; the claimed party accepted the process on March 9, 2020, as evidenced by the SMS sent to Numeración\_1.

During the registration process, the verification of the user's identity on the claimed party's website was based on the comparison, through a third company, of the name and tax identification number (NIF) of the claiming party with those existing in the census of the Tax Agency and the receipt of an image of the ID on both sides in response to the requests sent via SMS to Numeración\_1. Thus, the claimed party considered the identity of the applicant verified.

Following its internal procedures in case of non-payment, the claimed party sent various SMS notifications and debt collection messages to Numeración\_1 on May 14, 17, and 20, 2020, thereby communicating the debt and notifying the claiming party of the registration in credit information systems.

The claiming party reported, on May 18, 2020, to the National Police, that two days prior, they had received a letter in their mailbox from the claimed party, demanding payment of a debt for a loan. In the report, they stated that they did not recognize the debt and had not entered into any contract with the mentioned company.

The claimed party registered the claiming party in ASNEF-EQUIFAX, where they were listed during the periods from May 29 to June 8, 2020, from July 10, 2020, to January 30, 2023, and from April 15 to 16, 2023.

The claimed party states that they have the consent of the claiming party for the processing of their

personal data and authorization for their possible registration in credit information systems based on:

- a contract that does not bear any signature of the claiming party
- communications via SMS to Numeración\_1
- responses from an IP address not linked to the claiming party, and
- a certificate of account ownership whose information has been refuted after consulting the banking entity.

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The claimed party does not include, in the list of personal data they claim to process, copies of images of IDs.

It has been proven that the claimed party processed the data of the claiming party, to whom they registered in credit information systems during three periods between 2020 and 2023.

As the legal representative of the claiming party, FACUA Córdoba sent an email to the claimed party on September 12, 2022, requesting the deletion of the personal data of their represented party. This request received no response. The claimed party attributes this lack of response to an unintentional error on their part.

The claiming party sent another email to the claimed party on December 1, 2022, again requesting the deletion of their personal data and received a response from the claimed party on December 22, which deemed the deletion inappropriate due to an outstanding debt and urged the claiming party to report the identity theft and send a copy of the report.

On January 23, 2023, the claiming party again requested the deletion of their data from the claimed party and filed a complaint with the Spanish Data Protection Agency.

The claimed party states that they proceeded to block the data on February 6, 2023, after receiving a copy of the report to the National Police. However, they re-registered the claiming party in ASNEF-EQUIFAX between April 15 and 16, 2023.

III

Allegations to the initiation agreement

The claimed party, in their defense, has made statements questioning the infringement of Article 6 of the GDPR, as well as the aggravating factor related to negligence in their actions.

In response to such statements, the AEPD must indicate that these assertions are somewhat contradictory, as on one hand, they claim that their actions have been diligent since they have removed the personal data of the claiming party, in accordance with the established procedure in these cases, when in March 2023, through FACUA, they became aware of the complaint filed by the claiming party for identity theft for not recognizing the debt that the claimed party demands.

However, despite indicating that they have proceeded to remove the data from the solvency file at the request of the claimed entity, the AEPD has verified that the data of the claiming party was again registered in the solvency files in April 2023 at the request of the claimed party.

On the other hand, the claimed entity initially states that this new inclusion was due to a technical failure, but then claims that in reality, it was only...

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the data were blocked and that there was never an order for cancellation, as it has not been proven that such identity theft occurred.

The AEPD considers that the actions of the entity being claimed against have been negligent and that there is a clear violation of Article 6 of the GDPR, as the data of the claimant has been included in a credit file unlawfully since the entity being claimed against has processed personal data despite not

being in any of the situations that legitimize such processing of personal data.

The entity being claimed against alleges a legitimate interest based on the fact that it is the holder of the debt. However, the ownership of the debt subject to inclusion in the credit file cannot be considered certain, following a complaint filed in March 2023 with the police by the claimant for identity theft, and with the consumer association FACUA. Such facts demonstrate that the claimant has not acknowledged this debt and questions it since they have no signed contract with the entity being claimed against.

Therefore, if the ownership of the debt subject to inclusion in the credit file cannot be proven by the entity being claimed against, it cannot request its inclusion in any credit file until it is proven that the claimant is the holder of that debt.

Thus, requesting the inclusion of the personal data of the claimant in a credit file for a debt whose ownership has been questioned and which the entity being claimed against has not been able to prove constitutes a clear infringement of Article 6 of the GDPR, as it involves unlawful processing of personal data.

These facts are aggravated by a lack of diligence on the part of the entity being claimed against, as despite being informed by FACUA that the claimant does not acknowledge the debt, it has not proceeded to cancel the registration in the credit file of the claimant's data.

IV

#### Article 6 of the GDPR

The GDPR in its Article 4.11 defines the consent of the data subject as “any manifestation of will that is free, specific, informed, and unequivocal by which the data subject accepts, either by a statement or a clear affirmative action, the processing of personal data concerning them.”

Regarding the lawfulness of the processing of personal data, Article 6.1 of the GDPR establishes the following:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

In relation to credit information systems, we must refer to Article 20 of the LOPDGDD, highlighting its paragraph b), which establishes the following:

“1. Unless proven otherwise, the processing of personal data relating to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data have been provided by the creditor or by someone acting on their behalf or interest.
- b) That the data refer to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
- c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.

The entity maintaining the credit information system with data relating to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and

inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data being blocked during that period.

d) That the data are only maintained in the system while the non-fulfillment persists, with a maximum limit of five years from the date of maturity of the monetary, financial, or credit obligation.

e) That the data relating to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or the affected party has...

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requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts. When the right to limit the processing of data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it in accordance with the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.

f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation carried out, the party who consulted the system shall inform the affected party of the result of that consultation.

2. The entities that maintain the system and the creditors, regarding the processing of data related to their debtors, shall be considered joint controllers of the data processing, being subject to the provisions established by Article 26 of Regulation (EU) 2016/679. It shall be the responsibility of the creditor to ensure that the requirements for the inclusion of the debt in the system are met, being liable for its non-existence or inaccuracy.

3. The presumption referred to in paragraph 1 of this article does not cover cases where the credit information is associated by the entity maintaining the system with additional information not contemplated in that paragraph, related to the debtor and obtained from other sources, in order to carry out profiling of the same, particularly through the application of credit scoring techniques.”

V

Classification and Qualification of the Infraction of Article 6 of the GDPR

If confirmed, the aforementioned infraction of Article 6 of the GDPR could imply the commission of the infractions classified in Article 83.5 of the GDPR, which under the heading "General Conditions for the Imposition of Administrative Fines" states:

“Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infractions” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infractions.”

For the purposes of the statute of limitations, Article 72 “Infractions Considered Very Serious” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which imply a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met. (...)”

It is considered that the reported facts constitute an infraction of Article 6.1 of the GDPR. In this sense,

and according to the information available after the investigative actions carried out, the claiming party did not contract any debt with the claimed party, so the premise that motivated the processing of personal data of the claiming party and its registration in the solvency file has not been justified. In this regard, the absence of a legitimizing basis for the processing of personal data carried out is noted, and therefore, a presumed infraction of Article 6 of the GDPR.

On the other hand, although the claimed party claims to have blocked the data of the claimant on February 6, 2023, after becoming aware of the complaint filed by the claimant with the National Police for identity theft, it has been confirmed that the claimed party re-included the data of the claimant in the ASNEF-EQUIFAX solvency file on April 15 and 16, 2023, a circumstance that demonstrates that the processing of the personal data of the claimant continued.

VI

Article 17 of the GDPR

Article 17 of the GDPR, in relation to the right to erasure (“the right to be forgotten”) establishes the following:

“1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;

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- c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and no other legitimate grounds for the processing prevail, or the data subject objects to the processing pursuant to Article 21, paragraph 2;
- d) the personal data has been unlawfully processed;
- e) the personal data must be erased to comply with a legal obligation under Union or Member State law applicable to the data controller;
- f) the personal data has been collected in relation to the offering of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any link to those personal data, or any copy or replication of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 is likely to render impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims.”

VII

Classification and Qualification of Article 17 of the GDPR

If confirmed, the aforementioned infringement of Article 17 of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General Conditions for Imposing Administrative Fines” states:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total global annual turnover of the preceding financial year, opting for the higher amount:

b) the rights of data subjects under Articles 12 to 22; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Very Serious Infringements” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a limitation period of three years: infringements that constitute a substantial violation of the articles mentioned therein, and in particular, the following:

k) The obstruction or hindrance or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)”

It is considered that the reported facts constitute an infringement of Article 17 of the GDPR, relating to the right to erasure of personal data, since the first request, made by FACUA on behalf of the complainant in September 2022, was not responded to due to what the responding party qualifies as an “inadvertent error.” Exercising their right again, the complainant, acting on their own behalf, receives a response stating the existence of a debt that prevents their data from being erased from the solvency file. In this response, they are required to provide, if applicable, a police report that they would have filed in case they suspected being a victim of fraud; a document that had already been submitted by the complainant in the request to which the response was being given. Finally, the complainant submits a new request through their representative, which is responded to, indicating that their data has been blocked.

However, as evidenced by the fact that, subsequent to that response and, therefore, to the alleged blocking of the complainant's personal data, their data was again incorporated into the solvency file, the right to erasure of their personal data was not effectively satisfied.

Therefore, we are faced with the repeated violation of the right to erasure exercised by the complainant.

VIII

Article 37.7 of the GDPR

Article 37 of the GDPR, relating to the designation of the data protection officer, establishes the following:

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“1. The controller and the processor shall designate a data protection officer whenever:

a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity;

b) the main activities of the controller or the processor consist of processing operations that, by their nature, scope, and/or purposes, require regular and systematic monitoring of data subjects on a large scale, or

c) the main activities of the controller or the processor consist of large-scale processing of special categories of personal data pursuant to Article 9 and data related to criminal convictions and offenses referred to in Article 10.

2. A corporate group may appoint a single data protection officer, provided that they are easily accessible from each establishment.

3. When the controller or the processor is a public authority or body, a single data protection officer may be designated for several of these authorities or bodies, taking into account their organizational structure and size.

4. In cases other than those referred to in paragraph 1, the controller or the processor or associations and other bodies representing categories of controllers or processors may designate a data protection officer or shall designate one if required by Union or Member State law.

The data protection officer may act on behalf of these associations and other bodies representing controllers or processors.

5. The data protection officer shall be appointed based on their professional qualities and, in particular, their specialized knowledge of data protection law and practice and their ability to perform the tasks specified in Article 39.

6. The data protection officer may be part of the staff of the controller or the processor or perform their functions under a service contract.

7. The controller or the processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority.”

In relation to the aforementioned provision, Article 34 of the LOPDGDD, concerning the designation of a data protection officer, establishes the following:

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“1. Controllers and processors shall designate a data protection officer in the cases provided for in Article 37.1 of Regulation (EU) 2016/679 and, in any case, when it concerns the following entities:

a) Professional associations and their general councils.

b) Educational centers that offer education at any of the levels established in the legislation regulating the right to education, as well as public and private universities.

c) Entities that operate networks and provide electronic communications services in accordance with their specific legislation, when they regularly and systematically process personal data on a large scale.

d) Service providers of the information society when they create large-scale profiles of service users.

e) Entities included in Article 1 of Law 10/2014, of June 26, on the regulation, supervision, and solvency of credit institutions.

f) Financial credit establishments.

g) Insurance and reinsurance entities.

h) Investment service companies, regulated by securities market legislation.

i) Distributors and marketers of electricity and distributors and marketers of natural gas.

j) Entities responsible for common files for the assessment of asset solvency and credit or for common files for the management and prevention of fraud, including those responsible for files regulated by anti-money laundering and counter-terrorism financing legislation.

k) Entities that carry out advertising and commercial prospecting activities, including market research, when they carry out processing based on the preferences of the affected individuals or engage in activities that involve profiling them.

l) Healthcare centers legally required to maintain patients' medical records.

Health professionals who, although legally required to maintain patients' medical records, practice individually are exempted.

m) Entities that have as one of their purposes the issuance of commercial reports that may refer to natural persons.

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n) Operators engaged in gaming activities through electronic, computer, telematic, and interactive channels, in accordance with gaming regulation legislation.

ñ) Private security companies.

o) Sports federations when processing data of minors.

2. The data controllers or processors not included in the previous paragraph may voluntarily designate a data protection officer, who will be subject to the regime established in Regulation (EU) 2016/679 and in this organic law.

3. The data controllers and processors shall communicate within ten days to the Spanish Data Protection Agency or, where applicable, to the autonomous data protection authorities, the designations, appointments, and terminations of data protection officers both in cases where they are obliged to designate one and in cases where it is voluntary.

4. The Spanish Data Protection Agency and the autonomous data protection authorities shall maintain, within the scope of their respective competencies, an updated list of data protection officers that will be accessible by electronic means.

5. In fulfilling the obligations of this article, the data controllers and processors may establish the full-time or part-time dedication of the officer, among other criteria, depending on the volume of processing, the special category of data processed, or the risks to the rights or freedoms of the data subjects.

## IX

### Qualification and classification of Article 37.7 of the GDPR

If confirmed, the aforementioned infringement of Article 37.7 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, of an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)" In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 74 "Minor infringements" of the LOPDGDD indicates: "Minor infringements shall be considered and shall prescribe after one year, the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and in particular, the following:

p) Not publishing the contact details of the data protection officer or not communicating them to the data protection authority when their appointment is required in accordance with Article 37 of Regulation (EU) 2016/679 and Article 34 of this Organic Law."

It is considered that the reported facts constitute an infringement of Article 37.7 of the GDPR, in relation to Article 34.1 f) of the LOPDGDD, concerning the designation of the data protection officer and its communication to the supervisory authority, as it has been established through the preliminary actions carried out on 01/18/2024, that the party being complained against had not communicated its Data Protection Officer to the AEPD up to the time of the investigation actions.

Therefore, it is considered that the party being complained against would have incurred an infringement of the indicated provisions as it has been proven that there is no record of having appointed a data protection officer, published their details, or made the necessary communication to the AEPD regarding these.

## X

### Graduation of sanctions

Article 58.2 of the GDPR provides as follows: "Each supervisory authority shall have all of the following corrective powers:

- b) to impose a reprimand on any controller or processor when the processing operations have infringed the provisions of this Regulation;
  - d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe;
  - i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;
- In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

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“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the affected parties;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

Sanction for the infringement of Article 6 of the GDPR.

In accordance with the transcribed provisions, and without prejudice to the outcome of the procedure instruction, for the purpose of determining the amount of the sanction for each infringement, the fine for the infringement of Article 6 is graduated taking into account:

As an aggravating factor:

Article 83.2.b) GDPR: “negligence in the processing of data” as it processes personal data, requesting the inclusion of personal data in solvency files, without having a legitimate basis for such processing, considering that the claiming party alleges not to have incurred the debt due to being a victim of alleged identity theft, facts that are reported to the Police.

Although the claimed party proceeded to block the personal data of the claiming party on February 6, 2023, after receiving a copy of the complaint to the National Police, where it was reported that they had been a victim of identity theft, between April 15 and 16, 2023, they again requested their registration in ASNEF-EQUIFAX.

Article 76.2 b) LOPDGDD: “The connection of the infringer's activity with the processing of personal data.” The activity of the claimed entity.

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requires continuous processing of personal data. Furthermore, the entity being claimed against carries out a high volume of personal data processing for the development of its activity.

Considering the factors presented, namely, the negligence in data processing, the link between the infringer's activity and the processing of personal data, and the recurrence of the same infringement by the entity being claimed against, allows for an initial assessment of the fine to be €100,000 for the infringement of Article 6 of the aforementioned GDPR.

**\*\*Sanction for the infringement of Article 17 of the GDPR\*\***

In accordance with the transcribed provisions, and without prejudice to the outcome of the procedure's instruction, for the purpose of determining the amount of the sanction for each infringement, the fine for the infringement of Article 17 is graduated taking into account:

As an aggravating factor:

Article 83.2.b) GDPR: “negligence in the processing of data” since the entity being claimed against, despite being aware of the request for the deletion of the personal data of the claiming party, did not effectively proceed with its deletion.

The negligence in the processing of personal data arises from the facts recorded in the file: the first deletion request made by the claiming party was not addressed, the second was responded to without considering the complaint made to the police, which the entity being claimed against indicates was sent along with the deletion request, and finally, despite the response provided on February 6, 2023, stating that the request of the claimant had been addressed, the subsequent inclusion in the asset solvency file seems to confirm that this was not the case.

Article 76.2 b) LOPDGDD: “The link between the infringer's activity and the processing of personal data,” since the activity of the entity being claimed against requires continuous processing of personal data. Furthermore, the entity being claimed against carries out a high volume of personal data processing for the development of its activity.

Considering the factors presented, namely, the negligence in data processing, the link between the infringer's activity and the processing of personal data, and the recurrence of the same infringement by the entity being claimed against, allows for an initial assessment of the fine to be €100,000 for the infringement of Article 17 of the GDPR, due to lacking the necessary measures to respond efficiently to the exercise of the right of deletion made by the claiming party.

**\*\*Sanction for the infringement of Article 37.7 of the GDPR\*\***

In accordance with the transcribed provisions, and without prejudice to the outcome of the procedure's instruction, for the purpose of determining the amount of the sanction for each infringement, the fine for

the infringement of Article 37 is graduated taking into account:

As an aggravating factor:

Article 83.2.b) GDPR: “negligence in the processing of data” since, despite being aware of the complaint filed by the claiming party before the AEPD, and having made allegations identifying the actions carried out by its data protection officer, there is no record of the effective appointment of this officer nor the formal communication of their details by the entity being claimed against to this Agency, demonstrating a lack of diligence on the part of the entity being claimed against.

Article 76.2 b) LOPDGDD: “The link between the infringer's activity and the processing of personal data,” since the activity of the entity being claimed against requires continuous processing of personal data. Furthermore, the entity being claimed against carries out a high volume of personal data processing for the development of its activity.

Considering the factors presented, namely, the negligence in data processing, the link between the infringer's activity and the processing of personal data, and the recurrence of the same infringement by the entity being claimed against, allows for an initial assessment of the fine to be €25,000 for the infringement of Article 37.7 of the GDPR in relation to Article 34.1 f) of the LOPDGDD, for failing to communicate the details regarding the Data Protection Officer of the entity being claimed against.

#### **\*\*XI Measures\*\***

As a consequence of each of the indicated infringements, it is agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified period...”.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

#### **\*\*Measures for Article 6 of the GDPR\*\***

In relation to the infringement of Article 6 of the GDPR, the measures consist of notifying within a maximum period of one month from the notification of the resolution adopted in the framework of this sanctioning procedure the adoption of the following measures:

- Certification that there is no registration, requested by the claiming party and in relation to the debt that is the subject of this procedure, of the personal data of the claiming party in the ASNEF-EQUIFAX asset solvency file.

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- Effective improvements in the identity verification procedure that allow for the proper verification of the identity of users requesting credits and that ensure compliance with the data minimization principle established in Article 5.1 c) of the GDPR.

#### **Measures under Article 17 of the GDPR**

In relation to the infringement of Article 17 of the GDPR, the measures consist of notifying, within one month from the notification of the resolution of this sanctioning procedure, the adoption of the following measures:

- The approval of an appropriate procedure that ensures no processing of personal data occurs after its deletion has been confirmed, as a result of exercising the right to erasure.
- The approval of a procedure that guarantees a swift and effective response to requests for exercising the right to erasure by its clients.

#### **Measures under Article 37.7 of the GDPR in relation to Article 34.1 f) of the LOPDGDD**

In relation to the infringement of Article 37.7 of the GDPR in relation to Article 34.1 f) of the LOPDGDD, the measures consist of notifying, within one month from the resolution adopted in this sanctioning

procedure, the contact details of the data protection officer of the entity being complained about to the AEPD.

It is warned that failure to comply with the requirements of this Agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

In light of the above, the following  
PROPOSAL FOR RESOLUTION  
is issued:

That the Director of the Spanish Agency for Data Protection sanctions IDFINANCE SPAIN, S.A.U., with NIF A66487190, for the infringements of Articles 6, 17, and 37.7 of the GDPR, classified in Article 83.5.a), 83.5 b), and 83.4 a) of the GDPR, with a fine of €100,000 for the infringement of Article 6 of the GDPR, €100,000 for the infringement of Article 17 of the GDPR, and €25,000 for the infringement of Article 37.7 of the GDPR in relation to Article 34.1 f) of the LOPDGDD, resulting in a total fine of €225,000 (two hundred twenty-five thousand euros).

That the Director of the Spanish Agency for Data Protection orders IDFINANCE SPAIN, S.A.U., with NIF A66487190, to, pursuant to Article 58.2.d) of the GDPR, within one month from the resolution adopted in this sanctioning procedure, demonstrate compliance with the following measures:

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- Certification that there is no registration, requested by the complainant and in relation to the debt that is the subject of this procedure, of the personal data of the complainant in the ASNEF-EQUIFAX solvency file,
- Effective improvements in the identity verification procedure that allow for the proper verification of the identity of users requesting credits and that ensure compliance with the data minimization principle established in Article 5.1 c) of the GDPR,
- The approval of an appropriate procedure that ensures no processing of personal data occurs after its deletion has been confirmed, as a result of exercising the right to erasure,
- The approval of a procedure that guarantees a swift and effective response to requests for exercising the right to erasure by its clients,
- Notify the contact details of the data protection officer of the entity being complained about to the AEPD.

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, you are informed that you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed fine, which will entail a 20% reduction of the amount. With this reduction applied, the fine would be set at €180,000, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the fine.

In the event that you choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, you must make it effective by depositing it into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the fine amount. You must also send the proof of payment to the General Inspection Subdirectorate to proceed with closing the file.

In virtue of the above, you are notified of all that precedes, and you are given notice of the procedure so that within TEN DAYS you may state whatever you consider in your defense and present the

documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

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SECOND: On July 5, 2024, the respondent has proceeded to pay the fine in the amount of 180,000 euros, making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the fine, in relation to the facts referred to in the resolution proposal.

FOURTH: In the resolution proposal transcribed above, the facts constituting an infringement were established, and it was proposed that the Director impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202302929, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER IDFINANCE SPAIN, S.A.U. to notify the Agency of the adoption of the measures described in the legal grounds of the resolution proposal transcribed in this resolution, within 1 month from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to IDFINANCE SPAIN, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Data Protection Agency

C/ Jorge Juan, 6

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28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)